

HOUSE No. 3985

The Commonwealth of Massachusetts

PRESENTED BY:

Andres X. Vargas and Mindy Domb

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to promoting the future success of mattress recycling in the Commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Andres X. Vargas</i>	<i>3rd Essex</i>	<i>1/17/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>1/17/2025</i>
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>6/17/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>7/15/2025</i>

HOUSE No. 3985

By Representatives Vargas of Haverhill and Domb of Amherst, a petition (accompanied by bill, House, No. 3985) of Andres X. Vargas and Mindy Domb relative to mattress recycling. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to promoting the future success of mattress recycling in the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 21H of the General Laws is hereby amended by adding the
2 following section:-

3 Section 9. (a) For the purposes of section, the following words shall, unless the context
4 clearly requires otherwise, have the following meanings:

5 “Brand”, a name, symbol, word or mark that attributes a mattress to the producer of such
6 mattress.

7 “Commissioner”, the commissioner of the department of environmental protection.

8 “Covered entity”, any political subdivision of the commonwealth, mattress retailer,
9 permitted transfer station, waste-to-energy facility, health care facility, educational facility,
10 military base or commercial or nonprofit lodging establishment that possesses a discarded

mattress that was used and discarded in the commonwealth. Covered entity shall not include any renovator, refurbisher or any person who only transports a discarded mattress.

“Discarded mattress”, any mattress that a consumer discarded, intends to discard or abandoned in the commonwealth.

“Energy recovery”, the process that all or a portion of solid waste materials are processed or combusted in order to utilize the heat content or other forms of energy derived from such solid waste materials.

“Foundation”, any ticking-covered structure used to support a mattress and that is composed of 1 or more of the following: (i) a constructed frame; (ii) foam; or (iii) a box spring, whether stationary, adjustable or foldable. Foundation shall not include any bed frame or base made of wood, metal or other material that rests upon the floor and that serves as a brace for a mattress.

“Institution”, established organizational entities including, but not limited to: health care facilities, higher education facilities, military bases, public and private correctional facilities and jails, assisted living facilities and group homes.

“Mattress”, any resilient material or combination of materials enclosed by ticking, used alone or in combination with other products, and that is intended for or promoted for sleeping upon. Mattress shall include any foundation and any used or renovated mattress. Mattress shall not include any mattress pad, mattress topper, sleeping bag, pillow, car bed, carriage, basket, dressing table, stroller, playpen, infant carrier, lounge pad, crib or bassinet mattress, crib bumper, liquid or gaseous filled ticking, including any water bed and any air mattress that does not

contain upholstery material between the ticking and the mattress core and upholstered furniture, including a sleeper sofa.

“Mattress core”, the principal support system that is present in a mattress, including, but not limited to, springs, foam, air bladder, water bladder or resilient filling.

“Mattress recycling fee”, the amount added to the purchase price of a mattress sold to a consumer or to an ultimate end user in the commonwealth that is necessary to cover the cost of collecting, transporting and processing discarded mattresses pursuant to the mattress recycling program.

“Mattress recycling program”, a state-wide mattress recycling program that shall offer program services, incentives and a variety of other strategies to best address existing mattress recycling needs and coverage gaps across all regions in the commonwealth.

“Mattress topper”, any item that contains resilient filling, with or without ticking, intended to be used with or on top of a mattress.

“Non-profit social enterprise organization”, an organization that sells goods and services and enhances economic development and environmental justice through work opportunities in mattress recycling for individuals facing significant barriers to employment.

“Performance goal”, a metric approved by the department to measure, on an annual basis, the performance of the mattress recycling program, taking into consideration technical and economic feasibilities, in achieving continuous, meaningful improvement in improving the rate of mattress recycling in the commonwealth and any other specified goals of the mattress

recycling program. At a minimum, goals shall include collection and recycling rates and public awareness of mattress recycling.

“Producer”, any person, irrespective of the selling technique used, including that of remote sale, who manufactures or renovates a mattress that is sold, offered for sale or distributed in the commonwealth under the producer's own name or brand. Producer shall include: (i) the owner of a trademark or brand under which a mattress is sold, offered for sale or distributed in the commonwealth, whether or not such trademark or brand is registered in the commonwealth; and (ii) any person who imports a mattress into the United States that is sold or offered for sale in the commonwealth and that is manufactured or renovated by a person who does not have a presence in the United States.

“Renovate” or “renovation”, altering a mattress for the purpose of resale including any 1 or a combination of the following: (i) replacing the ticking or filling; (ii) adding additional filling; or (iii) replacing components with new or recycled materials. Renovate or renovation shall not include the stripping of a mattress of its ticking or filling without adding new material, the sanitization or sterilization of a mattress without otherwise altering the mattress or the altering of a mattress by a renovator when a person retains the altered mattress for personal use, in accordance with regulations of the office of consumer affairs and business regulation.

“Renovator”, any person who renovates discarded mattresses for the purpose of reselling such mattresses to consumers.

“Retailer”, any person who sells mattresses to a consumer or to an ultimate end user in the commonwealth or offers mattresses to a consumer in the commonwealth through any means

including, but not limited to, remote offerings such as sales outlets, catalogs or an internet website.

“Sanitization”, the direct application of chemicals to a mattress to kill human disease-causing pathogens.

“Sale”, the transfer of title of a mattress for consideration including, but not limited to, the use of a sales outlet, catalog, internet website or similar electronic means to a consumer or to an ultimate end user in the commonwealth.

“Sterilization”, the mitigation of any deleterious substances or organisms, including human disease-causing pathogens, fungi and insects from a mattress or filling material using a chemical or heat process.

“Ticking”, the outermost layer of fabric or material of a mattress. Ticking shall not include any layer of fabric or material quilted together with, or otherwise attached to, the outermost layer of fabric or material of a mattress.

“Upholstery material”, all material, loose or attached, between the ticking and the core of a mattress.

“Waste hauler”, any person who provides commercial, institutional and residential solid waste removal services, including the removal and end-of-use management of discarded mattresses in the commonwealth under the waste hauler’s own name and brand.

(b) Within 300 days following enactment of this section, the department shall develop a written plan to establish a mattress recycling program. Such mattress recycling program expenses shall be funded from a new mattress recycling fee structure, as outlined in the

department's plan, that is sufficient to cover the costs of operating and administering the program.

(c) Pursuant to the mattress recycling program, recycling shall be preferred over any other disposal method for mattresses, to the extent that recycling is technologically feasible and economically practical. Reuse shall be prioritized and the department's plan shall make reuse eligible for compensation reimbursement incentives offered by the department.

(d)(1) The department's plan submitted pursuant to subsection (b) shall: (i) describe the fee structure for the mattress recycling program and include a proposed budget; (ii) establish performance goals for the mattress recycling program that clearly outlines the maximum feasible level of recovery and recycling of used mattresses in support of the commonwealth's overall waste diversion goals as outlined in the department's solid waste master plan; (iii) establish a timeline for implementing and achieving convenient access to the mattress recycling program; (iv) detail how the mattress recycling program shall promote the recycling of discarded mattresses consistent with the commonwealth's solid waste management hierarchy; (v) include a description of the public education program; and (vi) propose a mechanism to mitigate the costs associated with collection of discarded mattresses that are illegally dumped that may include, but need not be limited to, proposals for: (A) funding of clean-up activities; (B) education and outreach; or (C) studies to evaluate the causes of illegal dumping.

(2) The department shall establish and implement a fee structure that covers, but does not exceed, the costs of: (i) developing the department's plan described in this subsection; and (ii) operating and administering the mattress recycling program. Revenue from any fees collected

shall be remitted to the Mattress Recycling Trust Fund established in section 2KKKKKK of chapter 29.

(e)(1) During the third year of implementing a mattress recycling program under an approved plan, the department shall study the status of mattress recycling program. The study shall include, but not be limited to, examining: (i) how the mattress recycling program can: (A) incentivize the reduction of toxics and resources including energy and water associated with mattress production; (B) incentivize the use of post-consumer recycled content in mattress; and (C) discourage the use of mattress materials that pose challenges for the recycling of discarded mattresses; and (ii) the scope of discarded mattresses in the commonwealth that are not being collected as part of the mattress recycling program and recommendations on how to direct the discarded mattresses to, and include them, in the mattress recycling program.

(2) In consultation with the mattress program advisory committee pursuant to subsection (h) and a minimum of 3 other community organizations invited by the advisory committee, a study shall evaluate the most effective methods of providing discarded mattress collection services to low-income individuals, environmental justice populations, municipalities with populations of less than 5,000 residents and multifamily housing structures.

(3) The study shall review how the department shall expand the employment social enterprise impact program established in subsection (e), including recommendations for continued social enterprise involvement with the statewide mattress recycling program including a review of opportunities to increase additional community impacts through preferred partnerships with local non-profit social enterprises and organizations that recycle mattresses and

policy recommendations to reduce potential barriers to entry in the statewide mattress recycling program for social enterprise organizations.

(4) Results of the study will be used to establish any changes to the fee structure or overall mattress recycling program design. The department shall maintain all records relating to the mattress recycling program for a period of not less than 3 years.

(f) The department shall include in its plan a new innovation grant program to provide funding to support eligible entities to carry out research and new pilot projects, including the purchase of equipment and capital building expenses, aimed at advancing the goal of increased sustainability for the field of mattress recycling. Through this grant program, the department shall focus on supporting innovations that particularly advance recycling related to materials within the mattress that are most challenging to recycle. Eligible services shall include research and implementation related to material processing innovations or the creation of new products made from recycled mattress materials.

(g) The department shall include in its plan and all future plans, the establishment of a new employment social enterprise impact pilot program based on written recommendations provided by the commissioner. The goal of the program shall be to foster the sustainability of nonprofit employment social enterprise organizations that sell goods and services and enhance economic development and environmental justice through the provision of work opportunities in mattress recycling for individuals facing significant barriers to employment. The department shall include in its plan the most recent language for the employment social enterprise capital grant program pursuant to line item 7002-0083 of section 2 of chapter 238 of the acts of 2024.

(h)(1) The commissioner shall appoint a mattress recycling program advisory committee who shall provide guidance, feedback and recommendations on the formation and approval of the department's plan, in addition to their guidance as it relates to the ongoing implementation of the mattress recycling program. The advisory committee shall have its first meeting no later than 60 days after enactment of this section. Prior to the approval of the department's plan, the advisory committee shall meet on a regular basis, for no less than 6 months to carry out its focus on providing guidance, feedback and recommendations on the establishment of the department's plan that shall be used to design the offering of the mattress recycling program. After the approval of the department's plan and the initial establishment of the mattress recycling program, the advisory committee shall meet no less than once every 4 months to provide feedback and recommendations as it relates to the implementation of the mattress recycling program, including the review of the commissioner's annual report.

(2) The advisory committee shall advise the department, including delivering written recommendations regarding the review of: (i) any plan for the development and implementation of a mattress recycling program; (ii) any amendment to a plan; and (iii) annual reports submitted by the department. The department may select and hire a third-party facilitator for the advisory committee that shall be included among the administrative costs of the mattress recycling program, to be paid by the mattress recycling fee.

(3) The advisory committee shall be comprised of the following members: (i) the commissioner of the department of environmental protection or their designee, who shall serve as chair; (ii) a representative from MassRecycle; (iii) a representative from a Massachusetts-based mattress recycling organization; (iv) a representative of an environmental nongovernmental organization; (v) a representative of a social enterprise nonprofit organization

involved in mattress recycling; (vi) a representative of the International Sleep Products Association and (vii) 1 member appointed by the attorney general that shall be an expert in consumer protection. The commissioner shall place great emphasis on selecting a diverse group of advisory committee members.

(i) Nothing in this section shall prohibit the department from administering existing mattress recycling programs.

(j) Prior to the approval of department's plan, the department shall solicit public input regarding end-of-use mattress recycling needs, gaps in departmental resource allocation and opportunities for increased programmatic support for municipalities with populations of less than 5,000 throughout the commonwealth. The department shall: (i) hold not less than 4 public hearings in geographically-diverse municipalities across the commonwealth, 2 of which shall be held in rural municipalities, to receive public testimony on the end-of-use mattress management needs of small and rural municipalities and shall provide for remote participation; and (ii) solicit and accept written and electronic testimony submissions from the public. The department shall solicit public comment for at least 30 days and shall summarize the public input it receives in the needs assessment.

(k)(1) Not later than October 15th of each year, the department shall prepare and submit an annual report that shall include: (i) information on the number and tonnage of discarded mattresses collected pursuant to the mattress recycling program; (ii) a summary of the public education that supports the mattress recycling program; (iii) an evaluation of the effectiveness of methods and processes used to achieve performance goals of the mattress recycling program, information on progress made toward achieving the goals, an explanation of why any goals were

not met during the previous calendar year and any efforts that will be taken to improve progress toward meeting the goals in the future, if applicable; (iv) recommendations for any changes to the mattress recycling program; (v) the number of discarded mattresses that were illegally dumped as reported to the department, an analysis of how the data required by this section has changed over time and strategies the department will take to address discarded mattresses that are not included in the program and discarded mattresses that are illegally dumped; and (vi) the mattress recycling program's costs and revenues for the previous calendar year. The commissioner shall review and approve the yearly annual report.

(2) The commissioner shall post the annual report on the department's internet website.

(3) The department shall submit the annual report to the: (i) chairs of the joint committee on environment and natural resources; (ii) chairs of the house and senate committees on ways and means; and (iii) clerks of the house of representatives and senate.

(l) The mattress recycling program shall begin no later than 24 months after the enactment of this legislation.

SECTION 2. Chapter 29 of the General Laws is hereby amended by inserting, after Section 2JJJJJ, the following section:-

Section 2KKKKKK. (a) There shall be established and set up on the books of the commonwealth a separate fund, to be known as the Mattress Recycling Trust Fund. It shall consist of amounts credited to the fund in accordance with this section. The commissioner of the department of environmental protection shall be the custodian of the fund.

222 (b) The fund shall consist of: (i) the mattress recycling fee established in section 9 of
223 chapter 21H; (ii) revenue from appropriations or other money authorized by the general court
224 and specifically designated to be credited to the fund; and (iii) interest earned on money in the
225 fund. Amounts credited to the fund shall not be subject to further appropriation and any money
226 remaining in the fund at the end of a fiscal year shall not revert to the General Fund.

227 (c) Money in the fund shall be expended to carry out the goals of strengthening the
228 mattress recycling program services across the commonwealth and operating and administering
229 the program.

230 (d) The department of environmental protection shall annually, not later than December
231 31, report on the activity of the fund to the: (i) chairs of the joint committee on environment and
232 natural resources; (ii) house and senate committees on ways and means; and (iii) clerks of the
233 house of representatives and senate.